

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH & BEYOND INC. v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

**COMPLAINANT’S MOTION TO FILE UNDER SEAL COMPLAINANT’S
REPLY TO RESPONDENTS’ OPPOSITION BRIEF AND RESPONSES TO
RESPONDENT’S PROPOSED FINDINGS OF FACT**

Pursuant to Rule 5 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. Section 502.5, and the Protective Order entered by the Presiding Officer in this case on July 28, 2023, see Dkt. 20 (the “Protective Order”), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”), by and through its undersigned attorneys, respectfully moves for an order permitting Complainant to file under seal with the Presiding Officer unredacted copies of its Reply to Respondents’ Opposition Brief (“Reply Brief”) and Responses to Respondents’ Proposed Findings of Fact (“CFOF”, together with the Reply Brief, the “Subject Filings”), filed contemporaneously herewith, and file on the public docket of this case redacted copies of the Subject Filings.

The Subject Filings contain information designated Confidential or Attorney’s Eyes Only by the parties, which information was previously the subject of three previous motions to seal, two filed by Complainant, (Dkt. No. 105 (Jan. 17, 2025); Dkt. No. 92 (Dec. 13, 2024) (the “Prior

Complainant Sealing Motions”)¹, and one by Respondents. (Dkt. No. 110 (Feb. 27, 2025) (the “Respondents Sealing Motion”.) For the same reasons discussed in the Prior Complainant Sealing Motions, Complainant seeks to file on the public docket of this case redacted copies of the Subject Filings.²

Good cause exists for the confidential treatment of the BBY Materials. Complainant believes that the nature and content of each of the materials constituting the BBY Materials is consistent with its respective confidentiality designation under the Protective Order.

Consistent with the requirements of the Protective Order in this case and for good cause shown, Complainant seeks by the instant motion leave to file the Subject Filings under seal.

¹ Unless otherwise specified, all defined terms herein take on the same meaning as in the Prior Complainant Sealing Motions.

² The Subject Filings contain information subject of the Respondents Sealing Motion. As to information designated Confidential or Attorney’s Eyes Only in the Respondents Sealing Motion, Complainant takes the same position it did in the Prior Complainant Sealing Motions as to the OOCL Materials.

Dated: March 20, 2025

Respectfully submitted,

HUTH REYNOLDS LLP

/s/ J. Lee Hill

Matthew J. Reynolds
reynolds@huthreynolds.com
Karl C. Huth
huth@huthreynolds.com
Gregory A. Crapanzano II
gcrapanzano@huthreynolds.com
J. Lee Hill
lhill@huthreynolds.com
Jie Shi
jshi@huthreynolds.com
Jack Mitchell
jmitchell@huthreynolds.com
J. Luke Rushing
jlrushing@huthreynolds.com
Mohini P.B. Rarrick
Mpriya@huthreynolds.com>
Heewan Noh
hnoh@huthreynolds.com
Caden Otunu
cotunu@huthreynolds.com
(631) 263-3648
41 Cannon Court
Huntington, NY 11743

*Counsel for Complainant 20230930-DK-
Butterfly-1, Inc., formerly known as Bed Bath &
Beyond Inc.*

Certificate of Service

I hereby certify that I have this day caused to be served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing a copy to their counsel of record listed below:

Matthew Thomas
Keith B. Letourneau
BLANK ROME LLP
1271 Avenue of the Americas
New York, NY 10020
(212) 885-5348
Lauren.Wilgus@BlankRome.com
Matthew.Thomas@BlankRome.com
Keith.Letourneau@BlankRome.com

Rebecca A. Fenneman
Eric C. Jeffrey
JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
700 12th St., NW, Suite 700
Washington, DC 20005
RFenneman@JeffreyFenneman.com
EJeffrey@JeffreyFenneman.com

Counsel for Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited

Dated: March 20, 2025

/s/ J. Lee Hill

J. Lee Hill

*For Complainant 20230930-DK-Butterfly-1,
Inc., f/k/a Bed Bath & Beyond Inc.*